

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ANTONIO SMALL,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
BRENNAN, Tax No. 960275, POLICE OFFICER
ANTHONY COSENZA, Tax No. 960394, SERGEANT
PETER BEHAN, Tax No. 947896, and POLICE
OFFICERS JOHN DOES #s 1-4 (names and numbers of
whom are unknown at present),

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 20, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOHN BRENNAN, Tax No. 960275, 63rd Precinct, 1844 Brooklyn Ave,
Brooklyn, NY 11210
POLICE OFFICER ANTHONY COSENZA, Tax No. 960394, Narcotics Borough Brooklyn
South, 1 Police Plaza
SERGEANT PETER BEHAN, Tax No. 947896, Narcotics Borough Queens North, 1 Police
Plaza

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ANTONIO SMALL, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on July 20, 2019, at approximately 10:00 pm plaintiff was lawfully present in the vicinity of Foster Avenue and Ralph Avenue, Brooklyn, New York, when the individually named defendants unlawfully stopped, questioned, frisked, searched, falsely arrested and imprisoned plaintiff without probable cause or legal justification. Defendants unlawfully handcuffed plaintiff and transported him against his will to the 69th precinct whereat he was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours. On July 21, 2020, after plaintiff was unlawfully detained at the 69th Precinct for many hours, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. On July 21, 2021, after plaintiff had been unlawfully detained for approximately 24 hours, plaintiff was released from custody at Kings County Central Booking without being charged with a crime because the Kings County District Attorney's Office declined to prosecute plaintiff because there was not enough evidence to establish probable cause to charge plaintiff with committing a crime. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any

manner. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, seized, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff ANTONIO SMALL is a resident of the state of New York.

3. Defendant POLICE OFFICER JOHN BRENNAN, Tax No. 960275, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER JOHN BRENNAN, Tax No. 960275, is and was at all times relevant herein, assigned to the 63rd Precinct.

5. Defendant POLICE OFFICER JOHN BRENNAN, Tax No. 960275, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER ANTHONY COSENZA, TAX NO. 960394, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER ANTHONY COSENZA, TAX NO. 960394, was at all times relevant herein, assigned to the 63rd Precinct and is currently assigned to the Narcotics Borough Brooklyn South Command.

8. Defendant POLICE OFFICER ANTHONY COSENZA, TAX NO. 960394, is being sued in his individual and official capacity.

9. Defendant SERGEANT PETER BEHAN, TAX NO. 947896, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT PETER BEHAN, TAX NO. 947896, was at all times relevant herein, assigned to the 63rd Precinct and is currently assigned to the Narcotics Borough Queens North Command.

11. Defendant SERGEANT PETER BEHAN, TAX NO. 947896, is being sued in his individual and official capacity.

12. Defendants New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On or about July 20, 2019, at approximately 10:00 pm plaintiff was lawfully present in the vicinity of Foster Avenue and Ralph Avenue, Brooklyn, New York, when the individually named defendants unlawfully stopped, questioned, frisked, searched, falsely arrested and imprisoned plaintiff without probable cause or legal justification.

19. By way of background, on July 20, 2019, plaintiff attended a party, and after plaintiff left the party, he heard gunshots and everyone in the area dispersed, including plaintiff.

20. Plaintiff was stopped by the defendant police officers, approximately 1 block away from where he heard the gunshots, in the vicinity of Foster Avenue and Ralph Avenue.

21. The officers unlawfully frisked and searched plaintiff without probable cause or legal justification.

22. The defendants did not recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

23. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the police officers have an objective factual basis to believe he committed a crime.

24. Nevertheless, the police officers unlawfully handcuffed plaintiff and transported him against his will to the 69th Precinct.

25. The officers interrogated plaintiff at the precinct and the officers told plaintiff that they knew that the gunshots were either fired by him or one of the other individuals they arrested and that he should tell them, who did it.

26. Plaintiff did not know who fired the gunshots and he was unable to provide the officers with the information they wanted.

27. The officers unlawfully fingerprinted, photographed, and detained plaintiff in a filthy holding cell for many hours.

28. Eventually, on July 21, 2019, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued until approximately 11:00 pm on July 21, 2019, when plaintiff was released from Kings County Central Booking without being charged with committing a crime.

29. Plaintiff was released from custody after the Kings County District Attorney's Office declined to prosecute plaintiff because it found that there was not enough evidence to establish probable cause to charge plaintiff with a crime or to initiate a criminal prosecution against plaintiff.

30. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

31. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, seized, and falsely arrested plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

32. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

33. The individually named defendant police officers have significant histories of discipline by the NYPD and complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public.

34. Numerous complaints and lawsuits have been filed against defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence

to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

35. Even on the occasions where the NYPD determined that defendants engaged in police misconduct, the NYPD disciplined defendants in a manner that was insufficient to address the misconduct engaged in by defendants.

36. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

37. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

38. Given defendants histories of engaging in serious police misconduct toward members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

39. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

40. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

41. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, and falsely imprisoned, without probable cause, in violation of

plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

54. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

56. Defendants failed to intervene to prevent the unlawful conduct described herein.

57. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

61. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, and falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a

reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

62. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

63. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful search, false arrest, and false imprisonment, malicious prosecution, and denial of due process because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, falsely arrest, maliciously prosecute, and deny due process to members of the public when there is no factual basis to suspect the individual has committed a crime.

64. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

65. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

66. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, stop, question, frisk, search, and falsely arrest, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests and prosecutions without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking, searching, and falsely arresting and individuals without a factual basis supporting a legal reason to do so.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

68. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New

York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

69. The City of New York has acted with deliberate indifference to the Fourth, Fifth, and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

70. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

71. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Antonio Small demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 20, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 20, 2022

David Hazan

DAVID M. HAZAN